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February 27, 2025

AS AMENDED

SENATE BILL NO. 1104

By: Frix

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[ medical marijuana - inventory tracking system -  
vendor - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.13, as last amended by Section 25, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.13), is amended to read as follows:

Section 427.13. A. All medical marijuana and medical marijuana products shall be purchased solely from a state-licensed medical marijuana business, and shall not be purchased from any out-of-state providers.

B. 1. The Oklahoma Medical Marijuana Authority shall have oversight and auditing responsibilities to ensure that all marijuana being grown in this state is accounted for and shall implement an inventory tracking system. Pursuant to these duties, the Authority shall require that each medical marijuana business, medical marijuana research facility, medical marijuana education facility and medical marijuana waste disposal facility keep records for every transaction with another medical marijuana business, patient or

1 caregiver. Inventory shall be tracked and updated after each
2 individual sale and reported to the Authority.

3 2. The inventory tracking system licensees use shall allow for
4 integration of other seed-to-sale systems and, at a minimum, shall
5 include the following:

- 6 a. notification of when marijuana seeds and clones are
7 planted,
- 8 b. notification of when marijuana plants are harvested
9 and destroyed,
- 10 c. notification of when marijuana is transported, sold,
11 stolen, diverted or lost,
- 12 d. a complete inventory of all marijuana, seeds, plant
13 tissue, clones, plants, usable marijuana or trim,
14 leaves and other plant matter, batches of extract, and
15 marijuana concentrates,
- 16 e. all samples sent to a testing laboratory, an unused
17 portion of a sample returned to a licensee, all
18 samples utilized by licensee for purposes of
19 negotiating a sale, and
- 20 f. all samples used for quality testing by a licensee.

21 3. Each medical marijuana business, medical marijuana research
22 facility, medical marijuana education facility and medical marijuana
23 waste disposal facility shall develop written standard operating
24 procedures outlining the manner in which it operates as prescribed

1 by the Authority and shall use a seed-to-sale tracking system or
2 integrate its own seed-to-sale tracking system with the seed-to-sale
3 tracking system established by the Authority in accordance with the
4 limitations set forth herein.

5 4. These records shall include, but not be limited to, the
6 following:

- 7 a. the name and license number of the medical marijuana
8 business that cultivated, manufactured or sold the
9 medical marijuana or medical marijuana product,
- 10 b. the address and phone number of the medical marijuana
11 business that cultivated, manufactured or sold the
12 medical marijuana or medical marijuana product,
- 13 c. the type of product received during the transaction,
- 14 d. the batch number of the marijuana plant used,
- 15 e. the date of the transaction,
- 16 f. the total spent in dollars,
- 17 g. all point-of-sale records,
- 18 h. marijuana excise tax records, and
- 19 i. any additional information as may be reasonably
20 required by the Executive Director of the Oklahoma
21 Medical Marijuana Authority.

22 5. All inventory tracking records retained by a medical
23 marijuana business, medical marijuana research facility, medical
24 marijuana education facility or medical marijuana waste disposal

1 facility containing medical marijuana patient or caregiver
2 information shall comply with all relevant state and federal laws
3 including, but not limited to, the Health Insurance Portability and
4 Accountability Act of 1996 (HIPAA).

5 C. The seed-to-sale inventory tracking system shall include:

6 1. A software infrastructure that provides maximum flexibility
7 for the exchange of data between the Authority and medical marijuana
8 business licensees;

9 2. Capabilities that allow the medical marijuana business
10 licensees to submit data to the Authority directly through an
11 application program interface (API), data interchange service tool,
12 or by other means or technology acceptable to the Authority;

13 3. Automated reporting for inventory and point of sale
14 discrepancies; and

15 4. Technology for payments, sales, and tax collection.

16 SECTION 2. This act shall become effective November 1, 2025.

17 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
18 February 27, 2025 - DO PASS AS AMENDED
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